

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
Emily Mason	)	Docket Nos. 2019-140
License No. 068.0104214	)	2019-141
License No. 097.0099545	)	

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through Prosecuting Attorney Jennifer B. Colin, and Respondent Emily Mason, formerly known as Emily Dunham, by and through her counsel, Katina Francis Ready, Esq., who hereby Stipulate and Agree as follows:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapters 65 and 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Stipulated Facts

2. Emily Mason (the "Respondent"), formerly known as Emily Dunham, of Rochester, Vermont is licensed by the State of Vermont as a Clinical Mental Health Counselor under license number 068.0104214. This license was originally issued on November 1, 2016 and expires on January 31, 2021.
3. Respondent was also on the Vermont Roster of Non-Licensed and Non-Certified Psychotherapists under license number 097.0099545. This license was originally issued on December 9, 2013 and expired on November 30, 2016.
4. During the relevant time, Respondent was employed by the Counseling Service of Addison County in Middlebury, Vermont (the "Facility").
5. While employed at the Facility in August 2018, Respondent began providing direct clinical care to a client of the Facility ("Client One").

6. Between November 2018 and mid-January 2019, Respondent had a sexual relationship with Client One.
7. Respondent provided direct mental health services to Client One until the end of March 2019.
8. While employed at the Facility in early February 2019, Respondent began providing direct clinical care to a client of the Facility ("Client Two").
9. In early March 2019, Respondent began a sexual relationship with Client Two, which remained ongoing during the investigation of these charges in May 2019.
10. Respondent provided direct mental health services to Client Two until early March 2019.

Violation One: 26 V.S.A. §3271(a)(4) Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has had a professional relationship within the previous five years.

11. Paragraphs 2 through 10 above are incorporated herein.
12. Vermont law requires licensed clinical mental health counselors to refrain from engaging in a sexual relationship with a former client for a period of five years.
13. Paragraphs 4 through 10 demonstrate that Respondent engaged in romantic, sexual relationships with two clients.
14. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(4).

Violation Two: 3 V.S.A. §129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes failure to conform to the essential standards of acceptable and prevailing practice.

15. Paragraphs 2 through 10 above are incorporated herein.
16. Vermont law requires licensed clinical mental health counselors and non-licensed and non-certified psychotherapists to practice competently by conforming to the essential standards of acceptable and prevailing practice.
17. Paragraphs 4 through 10 demonstrate that Respondent has failed to conform to the essential standards of acceptable and prevailing practice by engaging in sexual relationships with two clients to whom she was actively providing mental health services.

18. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Understandings

19. This Stipulation is neither an admission of liability by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Stipulation pursuant to these Understandings and the Order below. Respondent does not dispute that the State may be able to prove these charges by a preponderance of the evidence if this matter proceeds to a merits hearing.
20. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
21. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
22. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
23. Respondent is not under the influence of any drugs or alcohol at the time of signature of this Stipulation and Consent Order.
24. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
25. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
26. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health Practitioners hereby **INDEFINITELY SUSPENDS** Respondent's license to practice as a Licensed Clinical Mental Health Counselor and registration on the Roster of Non-Licensed and Non-Certified Psychotherapists **from the date of entry below**.

- B. At least forty-five (45) days prior to requesting reinstatement, Respondent must obtain an independent evaluation with a written report by a pre-approved psychologist or mental health counselor with Masters or Ph.D. graduate level education with expertise in mental health diagnosis and counseling, in good standing with his or her licensing authority. The evaluation and report must include a statement of fitness to practice supported by a detailed written synopsis of gathered history, reviewed documents and information, assessment tools utilized, diagnoses, treatment recommendations and practice conditions. The Independent Evaluator must also verify receipt and review of this Order in the report. The Independent Evaluation must comply with OPR requirements.
- C. If reinstated, Respondent's license **SHALL BE CONDITIONED** pursuant to whatever terms the Board finds reasonable at the time of Respondent's reinstatement request, taking into account the independent evaluation, the facts above, and anything else the Board deems relevant.
- D. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.
- E. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- F. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 5/28/20

By: /s/ Jennifer B. Colin
Jennifer B. Colin
Prosecuting Attorney
(802)828-1219
Jennifer.Colin@vermont.gov

RESPONDENT

Dated: 5/18/2020

By: Emily Mason
Emily Mason

APPROVED AS TO FORM:

ATTORNEY FOR RESPONDENT

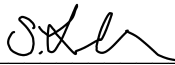
Dated: 5/26/2020

By: Katrina Francis Ready
Katrina Francis Ready, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS

Dated: 6/30/2020

By: 
Chairperson

Date of Entry: _____

There being a declared state of emergency, the Director of Professional Regulation finds that the Board cannot reasonably, safely, and expeditiously convene a quorum to transact business. By her signature, the Director enters the above Order on behalf of the Board.

Act 91 (2020), Sec. 20(a) (eff. March 30, 2020)